
FEDERAL WDMI FILING READINESS ASSESSMENT

Overall Score: 74 / 100

I. SCORING BREAKDOWN

Category	Max Points	Score	Notes
Complaint Quality (I..	25	22	Strong plausibility;..
Immunity/Abstention ..	20	16	Comprehensive analys..
Evidence Compilation	20	15	Massive DB; needs cu..
Procedural Compliance	15	12	FRCP and local rule ..
Filing Readiness	20	9	Key items outstandin..

II. DETAILED ASSESSMENT

A. Complaint Quality -- 22/25

Strengths:

- [OK] Meets Iqbal/Twombly plausibility standard -- factual allegations are specific, not conclusory.
- [OK] Six distinct counts with separate factual bases (§ 1983 substantive DP, procedural DP, equal protection; § 1985 conspiracy; § 1986 failure to prevent; Monell).
- [OK] Each defendant named with specific capacity (individual vs. official).
- [OK] Specific statistical evidence (44% ex parte, 5 orders on one day, 571+ days).
- [OK] Prayer for relief includes compensatory, punitive, injunctive, and declaratory.
- [OK] Jury trial demanded.
- [OK] Verification included.

Gaps:

- [!] Judicial immunity argument against McNeill is the weakest link -- the non-judicial

acts and absence-of-jurisdiction arguments are creative but face high bar.

- [!] Barnes state-action theory (conspiracy) needs strong factual development.
- [!] Monell claim against County needs more specific policy evidence.

B. Immunity/Abstention Strategy -- 16/20

Strengths:

- [OK] All major defenses analyzed: judicial immunity, Rooker-Feldman, Younger, domestic relations exception, qualified immunity.
- [OK] Counter-strategy for each defense documented with supporting authority.
- [OK] Dual-approach: damages claims + prospective injunctive/declaratory relief.
- [OK] Timing strategy (file after state proceedings conclude) eliminates Younger.
- [OK] Process vs. outcome framing addresses Rooker-Feldman.

Gaps:

- [!] Judicial immunity remains the single biggest obstacle. Even the creative arguments have a <50% success rate based on caselaw.
- [!] Need to develop the functional-TPR jurisdictional argument more fully.
- [!] Should consider whether to name McNeill at all vs. focusing on Monell and non-judicial defendants.
- [!] Younger risk is real if state case is still pending -- filing timing is critical.

C. Evidence Compilation -- 15/20

Strengths:

- [OK] Litigation database: 308,704 evidence quotes; 26,459 extracted harms.
- [OK] McNeill-specific: 663 mentions, 1,530 documented harms, 1,005 judicial bias entries.
- [OK] Conspiracy timeline: 2,512 events.
- [OK] Financial damages: \$1M-\$7.4M estimated across federal categories.
- [OK] Constitutional violation mapping complete.
- [OK] Authentication framework (FRE 901/902) documented.

Gaps:

- [!] Raw database evidence not admissible -- needs distillation into declarations and exhibits.
- [!] Need certified copies of all court orders.
- [!] Need official Register of Actions as exhibit.
- [!] Expert witness (child development) not yet retained.
- [!] Financial affidavit for IFP not yet completed with actual data.

D. Procedural Compliance -- 12/15

Strengths:

- [OK] FRCP 4 service plan for each Defendant.
- [OK] IFP Application drafted per 28 USC § 1915.
- [OK] Discovery plan covers FRCP 26, 30, 33, 34, 36.
- [OK] Local rule checklist (LCivR) prepared.
- [OK] Forms identified (JS-44, AO 440, USM-285).

Gaps:

- [!] JS-44 Civil Cover Sheet not yet completed.
- [!] AO 440 Summons forms not yet completed.
- [!] USM-285 forms not yet completed.
- [!] Need to verify Defendant addresses for service.
- [!] PDF conversion and formatting verification needed.

E. Filing Readiness -- 9/20

Strengths:

- [OK] All 8 WDMI stack documents drafted.
- [OK] Filing instructions comprehensive.
- [OK] Filing checklist prepared.

Gaps (must address before filing):

- [X] Timing Decision: Must decide whether to file now (Younger risk) or after state proceedings conclude (recommended).
- [X] IFP Financial Data: Complete all blanks with actual financial information.

- [X] Placeholder Completion: All [TO BE INSERTED] and [ADDRESS] fields must be populated.
- [X] PDF Conversion: All .md files -> properly formatted PDFs per LCivR 10.6.
- [X] Forms Completion: JS-44, AO 440 (×5), USM-285 (×5).
- [X] Supporting Documents: Tax returns, bank statements, pay stubs for IFP.
- [X] Certified Court Documents: Obtain from Muskegon County Clerk.
- [X] Address Verification: Confirm current addresses for all Defendants.
- [X] Statute of Limitations: Verify SOL has not run on earliest claims (3-year SOL from each violation).
- [X] Attorney Consultation: Strongly recommend limited-scope attorney review before filing.

III. RISK ASSESSMENT

Risk	Severity	Probability	Mitigation
Judicial immunity ba..	CRITICAL	HIGH (60-70%)	Focus on Monell and ..
Younger abstention	HIGH	HIGH (if state case ..	Time filing after st..
Rooker-Feldman dismi..	MEDIUM	LOW-MEDIUM (30%)	Careful framing; cha..
Domestic relations e..	LOW	LOW (15%)	Strong caselaw that ..
28 USC § 1915(e)(2) ..	MEDIUM	MEDIUM (40%)	Complaint designed t..
Barnes state-action ..	MEDIUM	MEDIUM (50%)	Develop conspiracy e..
Monell insufficient ..	MEDIUM	MEDIUM (40%)	Discovery needed; in..
3-year SOL on early ..	LOW	LOW	Continuing violation..

Highest-Risk Scenario

The most likely adverse outcome is: Complaint survives IFP screening but McNeill claims are dismissed on judicial immunity, Younger abstention dismisses remaining claims if state case is pending, and case is ultimately dismissed at motion to dismiss stage.

Best-Case Scenario

Complaint survives screening, Younger is avoided (state case concluded), Rooker-Feldman is overcome (process vs. outcome), Monell claim survives MTD,

discovery reveals policy/custom evidence, case proceeds to settlement or trial on County liability and conspiracy claims.

IV. PRIORITY ACTION ITEMS

Immediate (Pre-Filing)

1. ☐ Timing decision: Determine whether state proceedings have concluded.
2. ☐ Complete IFP Application with actual financial data.
3. ☐ Complete JS-44 Civil Cover Sheet.
4. ☐ Verify all Defendant addresses for service.
5. ☐ Obtain certified copies of key court orders from Muskegon County.
6. ☐ Verify statute of limitations for earliest claims.
7. ☐ Strongly recommended: Consult with a civil rights attorney (even limited-scope) to review the complaint.

Filing Day

8. ☐ Convert all documents to PDF (LCivR 10.6 compliant).
9. ☐ Complete AO 440 Summons forms (×5).
10. ☐ Complete USM-285 forms (×5).
11. ☐ Fill all placeholder fields in Complaint.
12. ☐ Sign all documents.
13. ☐ Submit to Clerk's office (mail, in-person, or e-file).

Post-Filing

14. ☐ Note assigned case number and judge.
15. ☐ Monitor IFP ruling.
16. ☐ Follow up with U.S. Marshals on service.
17. ☐ Calendar all response deadlines.
18. ☐ Prepare for potential 28 USC § 1915(e)(2) screening.

19. [] Prepare for anticipated Motion to Dismiss.

V. STRATEGIC RECOMMENDATIONS

1. Filing Timing

RECOMMENDED: File after the Michigan Supreme Court resolves the state case. This eliminates the Younger abstention defense entirely and creates the strongest posture for federal claims.

2. Defendant Strategy

Consider: Whether naming McNeill individually is strategically optimal. Judicial immunity creates the highest dismissal risk. An alternative strategy:

- Lead with Monell claim against County (no immunity)
- Name Barnes through conspiracy (qualified immunity, but overcomable)
- Name Watson under § 1985 (no state-action requirement)
- Seek injunctive relief against McNeill (not barred by judicial immunity)
- Reserve damages claims against McNeill as secondary

3. Complaint Refinement

Before filing, consider:

- Adding more specific factual detail to the Monell allegations (what specific policy?).
- Strengthening the Barnes conspiracy allegations with specific communications evidence.
- Adding a count for First Amendment retaliation if evidence supports it (retaliation for filing motions).

4. Pro Se Presentation

The federal complaint will be reviewed by a sophisticated audience (federal magistrate/judge). The quality of the complaint matters more in federal court than in state court. Consider:

- Having the complaint reviewed by a legal aid organization.

- Contacting the ACLU of Michigan regarding potential interest (civil rights angle).
 - Checking if any law school clinics handle § 1983 cases.
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VI. COMPARISON WITH EXISTING STACK

Feature	Old FINAL_1983_STACK	New WDMI_FULL_STACK
Complaint	Framework only	Full Iqbal/Twombly complaint..
Defendants	4 named	5 named with capacity analysis
Immunity analysis	Single document	Comprehensive matrix with co..
IFP Application	Not included	Full 28 USC § 1915 application
Evidence compilation	Basic	Constitutional violation map..
Discovery plan	Not included	Complete FRCP 26/30/33/34/36..
Service plan	Not included	FRCP 4 per-defendant plan wi..
Filing instructions	Basic	CM/ECF, local rules, forms, ..
Readiness score	Basic	Detailed 74/100 with risk ma..

Assessment Date: 2026-03-04

Score: 74/100 -- CONDITIONALLY READY (pending timing decision and placeholder completion)